



CHAPTER xxiv.

An Act to authorise the Abertillery and District Water Board to construct an additional reservoir and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS by the Abertillery and District Water Board Act 1910 (in this Act called "the Act of 1910") the Abertillery and District Water Board (in this Act called "the Board") were constituted and incorporated consisting of representatives of the urban district councils of Abertillery Abercarn Risca and Mynyddislwyn (in the Act of 1910 and this Act called "the councils") and the Board were authorised to construct certain waterworks in the counties of Brecknock and Monmouth and the separate waterworks undertakings of the councils were vested in the Board and the Board were authorised to supply water throughout the urban districts of Abertillery Abercarn and Risca and the Sirhowy portion (as defined in the Act of 1910) of the urban district of Mynyddislwyn :

And whereas in pursuance of the agreement dated the fifteenth day of June one thousand nine hundred and ten set forth in the First Schedule to the Act of 1910 the Board have purchased two hundred and fifty acres of land in the Valley of the Grwyne Fawr in the county of Brecknock and have commenced the construction of the works authorised by the said Act :

And whereas the population of the limits of supply of the Board has increased and is increasing more rapidly than was anticipated at the time of the promotion of the Bill for the Act of 1910 and it is expedient that the Board should be authorised to construct on the lands already acquired by them

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A.D. 1914. an additional reservoir below the reservoir authorised by the
— Act of 1910:

And whereas owing chiefly to unexpected geological features in the site of the reservoir dam and to the necessity of executing certain additional works and to the enhanced prices of labour and materials the cost of the works authorised by the Act of 1910 is likely very largely to exceed the estimated cost of the said works and it is expedient to authorise the Board to borrow money for the completion of the works authorised by the Act of 1910 and for the construction of the reservoir authorised by this Act:

And whereas estimates have been prepared by the Board for the purchase of lands and easements for and for the construction of the works by the Act of 1910 and this Act authorised and such estimates amount to the sum of two hundred and fifty thousand pounds:

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient to make such other provisions as are in this Act contained:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas pursuant to section 103 of the Act of 1910 an absolute majority of the whole number of the Board at a meeting held on the thirty-first day of December one thousand nine hundred and thirteen after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the South Wales Daily Argus and the South Wales Daily Post being two newspapers published or circulating in the districts of the councils such notices being in addition to the ordinary notices required for sanctioning such meeting resolved that the expense in relation to promoting the Bill for this Act should be paid out of the revenues of the Board:

And whereas at a further meeting of the Board held on the twenty-first day of January one thousand nine hundred and fourteen in pursuance of similar notices the propriety of the promotion of the Bill for this Act was confirmed by a like absolute majority of the Board:

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And whereas plans and sections showing the lines and levels of the work authorised by this Act with a book of reference thereto were duly deposited with the clerk of the peace for the county of Brecknock and are in this Act respectively referred to as the deposited plans sections and book of reference : A.D. 1914.
—

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Abertillery and District Water Board Act 1914. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Waterworks.

Part III.—Financial Provisions and Miscellaneous.

Division of
Act into
Parts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act:— Incorporation of Acts.

The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words “with the consent in writing of the owner or “reputed owner of any such house or of the agent of “such owner” were omitted from section 44;

The Waterworks Clauses Act 1863;

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the railway”

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means the reservoir by this Act authorised and “the centre of the railway” means the boundaries of the reservoir.

Interpretation.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Board” means the Abertillery and District Water Board;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“The Act of 1910” means the Abertillery and District Water Board Act 1910.

PART II.

WATERWORKS.

Power to make water-works.

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situation and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the work hereinafter described (that is to say):—

A compensation reservoir (to be called “the Helyg Reservoir”) situate wholly in the parish of Llanellieu in the rural district of Hay in the county of Brecknock and to be formed by means of a dam or embankment across the valley through which runs the stream known

as the "Grwyne Fawr" such dam or embankment com- A.D. 1914.
mencing at a point $15\frac{1}{2}$ chains or thereabouts measured
in a south south-easterly direction from the centre of the
Grwyne Fawr opposite the junction of the stream known
as Nant-yr-Helyg and $32\frac{1}{2}$ chains or thereabouts measured
in a north-westerly direction from the centre of the
Grwyne Fawr at the junction of the stream known as the
Nant-y-Gader Fawr and the Grwyne Fawr and terminating
at a point $15\frac{1}{2}$ chains or thereabouts measured in a
south-westerly direction from the centre of the Grwyne
Fawr opposite the junction of the stream known as the
Nant-yr-Helyg and $31\frac{1}{2}$ chains or thereabouts measured
in a north north-westerly direction from the centre of the
Grwyne Fawr at its junction with the stream known as
Nant-y-Gader Fawr and the reservoir will extend from
the said dam or embankment in a north-westerly direction
to a point 41 chains or thereabouts measured in a straight
line north-west of the said dam or embankment.

In addition to the foregoing principal work the Board may
upon the lands delineated upon the deposited plans make and
maintain all such walls embankments bridges tram-roads wells
tanks gauges filter-beds sluices by-washes shafts tunnels adits
culverts cuts catch-waters channels conduits pipes drains engines
approaches works and conveniences as may be necessary in
connection with or ancillary to the said work.

6. In the construction of the works authorised by this Act the Board may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and to any extent downwards Provided as follows (that is to say):—

Power to deviate.

The Board shall not construct any embankment or dam of the reservoir by this Act authorised of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or dam and three feet in addition.

7. If the reservoir by this Act authorised and delineated on the deposited plans is not completed within ten years from the passing of this Act then on the expiration of that period

Period for completion of works.

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A.D. 1914. the powers by this Act granted to the Board for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Power to
take waters.

8. Subject to the provisions of this Act the Board may for the purposes of their waterworks collect impound take use divert and appropriate all the waters of the Grwyne Fawr and all streams springs and waters which can or may be intercepted by the reservoir and other waterworks by this Act authorised.

New works
to form part
of existing
waterworks
undertaking.

9. Subject to the provisions of this Act the waterworks to be constructed under the authority of this Act shall for all purposes whatsoever be deemed part of the waterworks undertaking of the Board.

As to com-
pensation
water after
completion
of Helyg
Reservoir.

10. After the completion of the Helyg Reservoir the following provisions shall apply in lieu of the provisions of section 25 of the Act of 1910:—

(1) The Board shall during every day of twenty-four hours discharge or deliver into the River Grwyne Fawr at a point therein situate not more than two hundred yards below the foot of the dam or embankment of the Helyg Reservoir the following quantities of water in a regular uniform and continuous flow (that is to say):—

(A) Until the determination under subsection (4) of section 24 of the Act of 1910 of the extent of the drainage area which on the basis of the available rainfall ascertained as provided by the said section will yield a total average daily quantity of two million two hundred and fifty thousand gallons of water the daily quantity of water to be discharged or delivered by the Board as aforesaid shall be one million one hundred and twenty-five thousand gallons;

(B) After the determination of the extent of the said drainage area the daily quantity of water to be discharged or delivered by the Board as aforesaid shall be a quantity bearing the same proportion to two thousand one hundred and fifty acres as seven hundred and fifty thousand gallons bears to the number of acres in the drainage area so determined:

- (2) For the purpose of measuring the quantity of water to be so discharged or delivered into the River Grwyne Fawr the Board shall erect and maintain at a point on the said river below the Helyg Reservoir not more than two hundred yards from the foot of the dam or embankment thereof a proper and suitable measuring gauge over or through which the said compensation water shall flow and the same shall be open to the inspection and examination of the Usk Board of Conservators and of all persons interested therein: A.D. 1914.
- (3) In case of any neglect on the part of the Board to maintain any gauge in a state of efficiency and in case of any other neglect by or in consequence of which the said quantity of compensation water shall not so flow the Board shall for every day on which such neglect or breach occurs forfeit and pay to each of the persons affected thereby including the Usk Board of Conservators (who may sue for and recover the same) the sums following (that is to say) in the case of each of such persons (other than the Usk Board of Conservators) the sum of five pounds and in the case of the Usk Board of Conservators the sum of twenty pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them:
- (4) If any difference arises between the Board and the Usk Board of Conservators or any person so interested with respect to the construction or use of any gauge or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the President for the time being of the Institution of Civil Engineers:
- (5) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Board can divert collect impound or appropriate by means of the works authorised by the Act of 1910 and this Act except in respect of any lands situate between the foot of

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the embankment of the Helyg Reservoir and the point of discharge of water into the river:

- (6) If the works and mills mentioned in section 27 of the Act of 1910 or the businesses therein carried on are injuriously affected by the exercise of the powers by this Act conferred the owners and lessees shall have the same right to compensation subject to the same conditions as in that section provided.

Amendment
of section 24
(3) of Act of
1910.

11. The arbitrators appointed under section 24 (As to ascertaining available rainfall and defining extent of drainage area) of the Act of 1910 at the same time as they furnish to the Board and the Usk Board of Conservators the returns of the amount of the rainfall shown by the rain gauges erected by them in accordance with the provisions of subsection (2) of the said section shall also furnish the Board and the Usk Board of Conservators with all the available information which the arbitrators have obtained from the self-recording stream gauges erected by them in accordance with the provisions of the same subsection and any other information obtained by them as a result of their operations under the said section which the Board may from time to time require.

Confirmation
of agree-
ment with
Lord
Glanusk.

12. The agreement as set forth in the schedule to this Act and made between the Board of the one part and the Right Honourable Joseph Henry Russell Baron Glanusk of the other part is hereby confirmed and made binding on the parties thereto.

For protec-
tion of Bre-
conshire
County
Council.

13. Section 77 (For protection of Breconshire County Council) of the Act of 1910 shall be read and have effect as though the reservoir and works in connection therewith by this Act authorised were works authorised by the Act of 1910.

Accommo-
dation for
workmen
employed on
construction
of works.

14.—(1) The Board shall erect fit up and maintain or provide—

- (A) Such huts or buildings for the accommodation of the workmen employed in or about the construction of the works authorised by the Act of 1910 and this Act;
- (B) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connection with every such building or hospital. A.D. 1914.

(2) The Board shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or otherwise.

(3) The medical officer of health of the Breconshire County Council (in this section called "the county council") and the medical officer of health and inspector of nuisances of the rural district council of Hay shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Board shall give (every) such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the county council that the Board have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Board shall afford and maintain such accommodation as the county council may require. Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Board give notice to the county council that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board on the application of either of the parties to the difference and the Local Government Board may make such requirements (if any) in variation of the requirements of the county council as they may think fit.

(6) If the Board fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding

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A.D. 1914. twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the county council.

(7) Any expense incurred by the county council in carrying out the provisions of this section shall be repaid to the county council by the Board and shall be recoverable as a debt due from the Board to the county council.

(8) The Board shall pay to the Local Government Board any expenses incurred by that board under this section including a sum not exceeding three guineas a day for the services of any inspector in connection with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses summoned by the inspector.

PART III.

FINANCIAL PROVISIONS AND MISCELLANEOUS.

Power to
borrow.

15.—(1) The Board may from time to time borrow at interest in addition to the sums which they are authorised to borrow under the Act of 1910 any sum or sums of money for the purposes following (that is to say):—

(A) For the purchase of lands and easements for and for the construction of the works by the said Act and this Act authorised the sum of two hundred and fifty thousand pounds;

(B) For paying the taxed costs charges and expenses of this Act the sum requisite for that purpose;

and with the approval of the Local Government Board such further moneys as the Board may require for any of the purposes of this Act or otherwise in relation to the undertaking of the Board.

(2) In order to secure the repayment of the moneys borrowed or re-borrowed under this Act and the payment of interest thereon the Board may mortgage and charge the revenue of the Board as defined in the Act of 1910 (including the moneys receivable by the Board from the councils) and all rates and moneys which the Board are authorised to levy raise and collect within the limits of supply of the Board under the powers of the Act of 1910.

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16. The Board shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

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Periods for
discharge of
loans.

As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within sixty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (B) in the said section mentioned within five years from the date of the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board within such period as they may think fit to sanction.

17. The Board shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund Provided that the Board shall not be bound to pay any instalment or to make the first payment to the sinking fund in respect of moneys borrowed for the purposes (A) mentioned in the section of this Act whereof the marginal note is "Power to borrow" in so far as such purposes relate to the purchase of lands and easements for and for the construction of the works authorised by the Act of 1910 until the expiration of ten years from the thirty-first day of March one thousand nine hundred and eleven and in so far as such purposes relate to the construction of the reservoir by this Act authorised until the thirty-first day of March next after the completion of the said reservoir.

Method of
payment
of money
borrowed.

18. The following sections of the Act of 1910 shall apply to and in relation to all moneys borrowed under any statutory borrowing power and to all principal moneys in the same manner as if those moneys had been moneys authorised to be borrowed under the Act of 1910 (that is to say):—

Sections of
Act of 1910
as to bor-
rowing to
apply to all
principal
moneys.

Section 88 (Borrowing by means of mortgages);

Section 89 (Board may exercise borrowing powers by issue of stock under Part V of Public Health Acts Amendment Act 1890);

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- Section 92 (Sinking fund);
Section 93 (Alternative application of sinking fund);
Section 94 (Protection of lender from inquiry);
Section 95 (Board not to regard trusts);
Section 96 (Power to re-borrow);
Section 97 (Return to Local Government Board as to repayment of debt);
Section 98 (Application of money borrowed).

As to temporary borrowing.

19.—(1) For the purpose of providing temporarily during any financial year for the current expenses of their water undertaking and after the commencement of such year it shall be lawful for the Board to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any persons such sums as they may from time to time resolve not exceeding in each case an amount equal to one-third of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the revenue of the Board as defined in the Act of 1910 *pari passu* with any bond or mortgage affecting the same and it shall further be lawful for the Board to utilise for providing temporarily for any such expenses any sinking funds which they may have in hand crediting the said sinking funds with such fair rate of interest not being less than three per centum per annum as they may resolve Provided that—

(A) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income on the credit of which the sum was borrowed within two months after the expiration of such financial year:

(B) The clerk to the Board shall within three months after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that board shall approve or require:

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Board have failed to comply with the requirements of this section as to repayment the Local Government Board may by order suspend the operation of the powers of this section for such period as they may think fit. A.D. 1914.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and fifteen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

20. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall in the first instance be paid by the Board out of their revenue as defined by the Act of 1910 but may be repaid thereto out of the moneys to be borrowed by the Board under the powers of this Act. Costs of Act.

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The SCHEDULE referred to in the foregoing Act.

Stamp.

Ten
shillings.

AN AGREEMENT made the seventeenth day of February one thousand nine hundred and fourteen between the ABER-TILLERY AND DISTRICT WATER BOARD incorporated by the Abertillery and District Water Board Act 1910 (hereinafter referred to as "the Board" which expression shall include where the context so requires or admits their successors and assigns or other the body or bodies corporation or corporations person or persons for the time being deriving title under them) of the one part and the RIGHT HONOURABLE JOSEPH HENRY RUSSELL BARON GLANUSK (hereinafter referred to as "Lord Glanusk" which expression shall include where the context so requires or admits his heirs executors administrators and assigns or other the person or persons for the time being deriving title under him or them) of the other part.

WHEREAS in pursuance of an agreement dated the fifteenth day of June one thousand nine hundred and ten and made between Lord Glanusk of the first part the Abertillery Urban District Council of the second part the Abercarn Urban District Council of the third part the Risca Urban District Council of the fourth part and the Mynyddislwyn Urban District Council of the fifth part more particularly set forth in the First Schedule to the Abertillery and District Water Board Act 1910 (hereinafter referred to as "the Act of 1910") and under and by virtue of the Act of 1910 and of an indenture of conveyance dated the twenty-fourth day of June one thousand nine hundred and eleven and made between Lord Glanusk of the first part Henry Le Blanc Lightfoot Henry James Bailey the Honourable Herbert Crawshay Bailey and John Conway Lloyd the trustees of the Glanusk settled estates of the second part and the Board of the third part the Board have acquired two hundred and fifty acres of land in the Grwyne Fawr Valley in the county of Brecknock theretofore part of the Glanusk settled estates for the purpose of constructing the Grwyne Reservoir and other works authorised by the Act of 1910:

And whereas the Board have commenced the construction of the works authorised by the said Act of 1910:

And whereas in consequence of the increase in the population of the limits of supply of the Board it is expedient that the Board should be authorised to construct on the lands so acquired by them

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as aforesaid an additional reservoir intended to be known as the Helyg Reservoir below the Grwyne Reservoir: A.D. 1914.

And whereas the Board is promoting in Parliament in the ensuing session a Bill (hereinafter called "the Bill") the short title of which is "A Bill to authorise the Abertillery and District Water Board to construct an additional reservoir and for other purposes":

And whereas for the purpose of obviating opposition to the Bill by Lord Glanusk it is hereby agreed as follows:—

1. All mines minerals stone and clay in on or under any of the lands so acquired by the Board from Lord Glanusk under the Act of 1910 and the said conveyance of the twenty-fourth day of June one thousand nine hundred and ten shall remain the property of Lord Glanusk but the Board shall be entitled to excavate on and out of the said lands so acquired as aforesaid all stone and clay required for the construction of the Helyg Reservoir and other works and buildings in connection therewith and the Board shall pay to Lord Glanusk a royalty at the rate of fivepence per cubic yard for all stone and clay used in the construction of the Helyg Reservoir and other works and buildings in connection therewith and excavated on or out of the lands so acquired as aforesaid.

2. Nothing in the said Bill so to be promoted by the Board as aforesaid shall alter the obligation of the Board to construct and maintain the Stock Bridge across the Grwyne Fawr Stream below the site of the dam of the Grwyne Reservoir or the sheep folds to be constructed in accordance with the provisions of clause 17 of the said agreement of the fifteenth day of June one thousand nine hundred and ten and of the said indenture of conveyance of the twenty-fourth day of June one thousand nine hundred and eleven.

3. Clauses 10 18 21 22 23 24 and 28 of the said agreement of the fifteenth day of June one thousand nine hundred and ten shall be applicable to the construction of the Helyg Reservoir and the other works contemplated by the said Bill as if such reservoir and works had been authorised by the Act of 1910.

4. Lord Glanusk shall at all times after the completion of the Helyg Reservoir proposed to be authorised by the Bill have the right to keep maintain and use one boat on such reservoir provided such right shall not be exercised so as to foul the water in such reservoir nor to interfere with any of the rights powers and authorities of the Board including the right of drawing off the water of or not filling the said reservoir and the doing of all such acts as they may deem necessary for maintaining cleansing and repairing the said reservoir or for preventing the water thereof from being fouled or preventing the accumulation of fish to such an extent as to affect the quality of the water therein.

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5. Lord Glanusk shall at all times after the completion of the said Helyg Reservoir have the right to erect maintain uphold keep use and enjoy a boathouse for the purpose of housing the said boat together with free and uninterrupted right of access thereto and therefrom over and along the land the property of the Board Such boathouse shall be erected and built at the edge of the said Helyg Reservoir at such spot as may be agreed upon by Lord Glanusk's agent and the Board's engineer.

6. The Board shall pay the costs and expenses incurred by Lord Glanusk of and incidental to the preparation and execution of this agreement.

7. This agreement which is intended to be scheduled in the Bill is subject to the approval of Parliament and to such alterations as Parliament may make therein provided that if any material alteration is so made Lord Glanusk and the Board may withdraw this agreement and the Board will give to Lord Glanusk notice of any alteration having been so made.

In witness whereof the Board have hereunto caused their common seal to be affixed and Lord Glanusk has hereunto set his hand the day and year first above written.

(One part executed thus:—)

The common seal of the Abertillery and District Water }
Board was hereunto affixed in the presence of }

L.S.

DAVID LEWIS Chairman.

A. GORDON EDWARDS Deputy Clerk.

(Other part executed thus:—)

Signed by the above-named Joseph Henry Russell }
Baron Glanusk in the presence of } GLANUSK.

J. H. FURMEDGE

Penmyarth Crickhowell

Land Agent.

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